

TENTATIVE RULING FOR CIVSB2220900
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Ashtel Studios, Inc. v. Meddcare Corporation, et al

Motion: Monetary Sanctions

Movant: Ashtel Studios, Inc. (Ashtel/Plaintiff)

Respondent: Meddcare Corporation (Meddcare) and Kulbhushan Johar (Johar), collectively (Defendants)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On September 22, 2022, Ashtel filed its complaint against Defendants. The complaint pleads a cause of action for breach of contract. Defendants answered. Now before the court is Ashtel's motion for discovery sanctions under California Code of Civil Procedure¹ Sections 2023.010, subdivision (d), and 2023.030, subdivision (a) concerning the scheduling of a deposition. Defendants oppose. Ashtel replies.

ANALYSIS

Plaintiff's Request for Fees

Section 2023.010, subdivision (d) states that misuses of the discovery process include "[f]ailing to respond or to submit to an authorized method of discovery." "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2023.030, subd. (a).)

¹ All further code references are to the Code of Civil Procedure unless stated otherwise.

While there was a four-day delay in relaying Defendant's counsel's conflict, Ashtel still received it two business days prior to the scheduled deposition. Despite this notice, Ashtel declined to cancel or postpone the deposition. There is no evidence before the Court that shows that cancelling within this timeframe would have resulted in a cancellation fee. Thus, it is reasonable to infer that the only concern that Ashtel had was the approaching deadline for the motion for summary judgment.

To expect Defendants' counsel to give a concrete time as to when a preliminary hearing involving five defendants and four attorneys would finish is unreasonable. Especially given that Ashtel had the opportunity to reschedule the deposition and Defendants' counsel already provided notice that he would be unavailable the morning of June 30. The evidence shows that Defendants' counsel tried to keep Ashtel's counsel updated during the preliminary hearing but could not give a firm time. Ashtel's counsel adjourned the deposition at 10:35 am without trying to set a time in the afternoon, when Defendants' counsel indicated availability.

There is no evidence before the Court to show that Defendants' counsel was intentionally trying to mislead the Ashtel's counsel regarding the notice of automatic stay. Lastly, it is important to note that had Ashtel agreed to work with Johal to reschedule the deposition to July 2, rather than demanding the deposition go forward on June 30, the parties would have been in the exact same position, without the unnecessary litigation and financial expenditures.

Defendant's Request for Fees

Within their opposition, Defendants request sanctions under Section 128.7, subdivision (h), and request that the Court order Ashtel to pay their attorneys' fees in opposing this motion. A motion for sanctions brought under Section 128.7 must be made separately from other motions or requests. (§ 128.7, subd. (c)(1).) In the case at hand, Defendants merged their request for sanctions as part of their opposition. Additionally, a motion for sanctions under Section 128.7 must be served

at least 21 days before it is filed. (§ 128.7, subd. (c)(1).) Defendants also failed to comply with the safe harbor provision.

RULING

1. Defendants' request for sanctions is DENIED.
2. Plaintiff's request for sanctions is DENIED.
3. Movant to give Notice.